

Rajveer Bhati v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 18 December 2012 · WRIT - C No. - 66407 of 2012 · **Writ dismissed; relegated to s.127 appeal against final assessment.**

HEADNOTE

Where a final assessment under s.126 of the Electricity Act, 2003 has been made after objections to the provisional assessment, a writ seeking to quash the provisional and final orders is not maintainable. The consumer has an alternative remedy of appeal under s.127 of the Act read with Clause 6.8 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Rajveer Bhati sought quashing of a provisional assessment dated 25 August 2012 and a final assessment dated 12 October 2012 for Rs. 2,13,691. A 18 July 2012 inspection of his premises alleged theft of electricity. He filed objections on 20 September 2012; Respondent No. 3 decided those objections and made the final assessment. The State and the licensee raised a preliminary objection that an appeal under s.127 of the Electricity Act, 2003 lay against the final order.

HOLDING-UNITS

INTERPLAY · EA2003::127

writ-barred-by-s127-appeal-against-s126-final-assessment

HOLDING

After reciting s.126(1)–(3) (provisional assessment, service, objections, and final order after hearing) and s.127(1), and noting that Clause 6.8 of the U.P. Electricity Supply Code, 2005 also provides for appeal against the final order of assessment, the Court held that the petitioner had an alternative remedy of appeal under s.127 read with Clause 6.8 against the final assessment dated 12.10.2012, declined Article 226 interference, and dismissed the writ on that ground. ¶ 1

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Where a final assessment under s.126 of the Electricity Act, 2003 has been made after objections to the provisional assessment, a writ seeking to quash the provisional and final orders is not maintainable. The consumer has an alternative remedy of appeal under s.127 of the Act read with Clause 6.8 of the U.P.. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal Where a final assessment under s.126 of the Electricity Act, 2003 has been made after objections to the provisional assessment, a writ seeking to quash the provisional and final orders is not maintainable. The consumer has an alternative remedy of appeal under s.127 of the Act read with Clause 6.8 of the U.P.. ¶ 1

s126-procedural-strictness-notice-and-hearing Where a final assessment under s.126 of the Electricity Act, 2003 has been made after objections to the provisional assessment, a writ seeking to quash the provisional and final orders is not maintainable. The consumer has an alternative remedy of appeal under s.127 of the Act read with Clause 6.8 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND THE QUANTUM OF THE PROVISIONAL AND FINAL ASSESSMENTS

The Court did not examine the checking report or the assessment orders on merits once the s.127/Clause 6.8 appeal was held to be an adequate alternative remedy. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.